

Court No. - 3

Case :- WRIT - C No. - 13982 of 2016

Petitioner :- Mohan Sharma

Respondent :- Dakshinanchal Vidut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Vishal Agarwal, Anshika Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Learned counsel appearing for the respondents prays for and is granted 10 days' time to seek instructions.

Put up as fresh on 13th April 2016.

Till then no coercive action shall be taken against the petitioner in pursuance of the impugned recovery process.

Order Date :- 31.3.2016

A. Pt. Singh

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Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Instructions filed today by Ms. Usha Kiran, learned counsel for the respondent is taken on record.

Heard learned counsel for the petitioner and Ms. Usha Kiran representing respondent.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the recovery citation dated 2.05.2015 issued by the respondent no. 3.

It is contended on behalf of the petitioner that since he did not receive the copy of the provisional assessment notice, as such he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate. Learned counsel for the petitioner states that the petitioner will submit objection to the provisional assessment within two weeks from today. Learned counsel appearing for the petitioner has also invited the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the provisional assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.1,71,312/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned recovery citation dated 2.05.2015 is hereby quashed. The final assessment order shall be

made within six weeks after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 18.4.2016

A. Pt. Singh